

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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KENNY DORCEAN,

Plaintiff,

10 CV 04401 (NG)(JO)

-against-

THE CITY OF NEW YORK, DETECTIVE JOHN
RIVERA, shield # 452, UNDERCOVER OFFICER, #
C0111, SERGEANT VICTOR BRUNO, tax # 901239,

**FIRST AMENDED
COMPLAINT**

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. Plaintiff brings this civil rights action against the City of New York and New York City Police Officers employed in the Brooklyn South Narcotics Division alleging that defendants violated his rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Specifically, plaintiff alleges that, on July 18, 2009, in Brooklyn, defendants falsely arrested him, used unreasonable force on him, denied him prompt medical care and made false allegations about him to prosecutors. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District, and because some or all of the defendants reside in this District.

PARTIES

4. Plaintiff is a resident of Kings County.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Detective John Rivera, Undercover Officer #C0111 and Sergeant Victor Bruno are New York City Police Officers employed in the Brooklyn South Narcotics Division. Defendants were acting under color of state law and in their capacities as New York City Police Officers at all relevant times. Defendants are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual capacities.

STATEMENT OF FACTS

7. On July 18, 2009, in the late-afternoon or early evening, plaintiff and his friend Andre Senat were standing on the sidewalk in front of a building on the corner of Ditmas Avenue and East 23rd Street talking with a female friend.

8. At all relevant times, plaintiff was obeying the law and not acting in a suspicious manner.

9. At the above time and place, Hakien Perry walked by plaintiff and Senat.

10. Suddenly, a police van pulled up and Detective John Rivera and Sergeant Victor Bruno exited the van.

11. Detective Rivera unlawfully seized plaintiff and Senat, while Sergeant Bruno seized Perry.

12. Detective Rivera put plaintiff against a wall, searched him and did not find anything illegal on his person.

13. Plaintiff's pants fell down to his knees during the search.

14. Although plaintiff had not committed a crime, Detective Rivera, under the supervision of Sergeant Bruno, arrested plaintiff and charge him with possession of marijuana.

15. Detective Rivera intentionally handcuffed plaintiff excessively tight, causing plaintiff pain and bruising, grabbed him by the neck and pushed him into the police van.

16. Plaintiff asked Rivera and Bruno to take him to the hospital but they refused.

17. Plaintiff was taken to the 70th Precinct.

18. While plaintiff was confined in a cell in the precinct, Detective Rivera, pursuant to an agreement with Sergeant Bruno and Undercover Officer # C0111, misrepresented in police reports that plaintiff was observed possessing marijuana.

19. At approximately 11:00 p.m., plaintiff was taken to Brooklyn Central Booking.

20. While plaintiff was held in Central Booking, Detective Rivera, pursuant to an agreement with Sergeant Bruno and Undercover Officer # C0111, maliciously commenced a bogus prosecution against plaintiff by misrepresenting to the King County District Attorney's Office that plaintiff was observed possessing marijuana.

21. As a result of defendants' misrepresentation, charges were filed and plaintiff was required to appear before a judge for arraignment.

22. On July 19, 2009, during the night court session, plaintiff was arraigned in Brooklyn Criminal Court and the charges were adjourned in contemplation of dismissal.

23. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was incarcerated for approximately well over 24 hours, deprived of his liberty, and suffered emotional distress, mental anguish, fear, anxiety and humiliation. Plaintiff also suffered pain and bruising from defendants' use of excessive force.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

24. Plaintiff repeats the foregoing allegations.

25. Plaintiff did not commit a crime or violation on July 18, 2009 and no police officer observed plaintiff acting in a manner that day which gave rise to probable cause.

26. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

SECOND CLAIM

(UNREASONABLE FORCE UNDER FEDERAL LAW)

27. Plaintiff repeats the foregoing allegations.

28. Defendants' use of force upon plaintiff or their failure to intervene was objectively unreasonable and caused plaintiff pain and injury.

29. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for using unreasonable force.

THIRD CLAIM

(FABRICATION OF EVIDENCE UNDER FEDERAL LAW)

30. Plaintiff repeats the foregoing allegations.

31. Detective Rivera, pursuant to an agreement with Sergeant Bruno and Undercover Officer # C0111, maliciously commenced a bogus prosecution against plaintiff by misrepresenting to the King County District Attorney's Office that plaintiff was observed possessing marijuana.

32. Defendants' misrepresentation deprived plaintiff of liberty.

33. Accordingly, defendants are liable to plaintiff under the Sixth Amendment for fabrication of evidence and denying plaintiff a fair trial.

FOURTH CLAIM

(DENIAL OF MEDICAL CARE UNDER FEDERAL LAW)

34. Plaintiff repeats the foregoing allegations.

35. Plaintiff asked defendants Rivera and Bruno to take him to the hospital for treatment but they refused.

36. Accordingly, defendants are liable to plaintiff under the Fourteenth Amendment for denying him prompt medical care.

SIXTH CLAIM

(MONELL CLAIM AGAINST THE CITY OF NEW YORK)

37. Plaintiff repeats the foregoing allegations.

38. The City of New York, through a policy, practice, and custom, directly caused the constitutional violations suffered by plaintiff.

39. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, and/or have been inadequately trained.

40. In fact, defendant Rivera was sued for civil rights violations, including false arrest, in *Dave Duncan v. City of New York, et al.*, 09 CV 1197 (EDNY), which the City of New York settled in 2009.

41. Despite the above, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the defendants and improperly retained and utilized them. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the defendants.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: January 28, 2011
Brooklyn, New York

/s/
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